



INDIA ENTRY

India entry in 2026: choosing the right structure

March 2026 · by Gaurav Sharma, Managing Partner

Most India-entry mistakes are made in the first month — in the choice of vehicle. The right structure depends on what the business will actually do in India, how profits will move, and how quickly the group needs to be operational.

A wholly-owned subsidiary offers the most operational freedom and the cleanest path to scale, but carries full compliance. An LLP can be efficient for services-led models. Branch, liaison and project offices suit narrower, defined mandates — and each carries distinct tax and FEMA consequences.

Repatriation should be modelled at the outset, not discovered later. How capital comes in, and how returns go out, shapes the structure as much as the activity does.

Speed matters too. Incorporation, PAN/TAN/GST registrations and banking can be sequenced to get a working entity live quickly, with finance, payroll and compliance layered on top.

TAG Group's India Entry practice models these options up front and then runs the setup end to end — one coordinating team across strategy, incorporation, tax, finance, HR, IT and premises.